

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 07/14/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRiV0Znhvai9qT05tZz09#success>

NOTE: Any party contesting a tentative ruling below must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: L23-02492
CASE NAME: CAPITAL ONE, N.A. VS. KENDALL AUSTIN
MOTION HEARING/ MINUTE ORDER SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION
FILED BY: CAPITAL ONE, N.A.
TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Plaintiff filed a Motion to Set Aside Dismissal and Enter Judgment, per stipulation. The Motion had originally been scheduled for 4/21/26, but on that day, this court found that service on Defendant was ineffective, and continued to the Motion to 7/14/26. This court also ordered Plaintiff to provide notice of the Motion and of the 7/14/26 hearing to Defendant.

Specifically, this court found that the mailing address used by Plaintiff (Pleasant Hill) to provide notice of the Motion to Defendant was different than that where Plaintiff had served Defendant with process (Concord).

Plaintiff has filed proof of service, on 5/29/26, indicating that they have now provided notice of the 7/14/26, Motion hearing to Defendant at the Concord address, which is the same address as that where Defendant was personally served with process.

However, their proof of service only indicates that they provided Defendant with notice of the hearing, and not with a copy of the Motion.

Thus, there is no evidence that Defendant is aware of the contents of the Motion.

Disposition

This Motion will be dropped.

**2. 9:00 AM CASE NUMBER: L25-01908
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. VERNELL MCCALL
MOTION HEARING/ MINUTE ORDER MTC RESPONSES TO REQ. FOR ADMISSIONS,
INTERROGATORIES, AND REQ. FOR PROD. OF DOCS
FILED BY: MCCALL, VERNELL**

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Defendant has filed a Motion to Compel further discovery responses.

The Motion is unopposed, however, the Motion was originally scheduled for 4/21/26. On that date, this court found that Defendant had not provided any notice to the Plaintiff, and continued the matter to 7/14/26. This court also ordered Defendant to provide notice of the Motion and hearing date to Plaintiff.

There is no evidence that Defendant has provided this notice.

Disposition

This Motion will be dropped.

3. 9:00 AM CASE NUMBER: L22-03765

CASE NAME: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY VS. DOES 1 TO 10

*HEARING ON MOTION IN RE: TO LIFT THE NOTICE OF CONDITIONAL SETTLEMENT STAY AND OF
NONAPPEARANCE

FILED BY: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Plaintiff filed a Motion to lift the notice of conditional settlement stay involving the Defendant Budee Inc. The Motion was served on the mailing address for Budee Inc where Plaintiff served Defendant with process through substitute service, on 8/30/24.

The Motion is unopposed.

Background

The case involves multiple codefendants. On 4/10/25, Plaintiff filed a Notice of Settlement with respect to one defendant only, Anjelica Castaneda. Plaintiff had attempted to enter default with respect to Defendant Budee Inc, on 2/18/25, but learned that the request was rejected because of the notice of settlement.

Analysis

Section 187 of the CCP grants wide discretion to a trial court to adopt “any suitable process ... which may appear most conformable to the spirit of this code.”

In the instant matter, the spirit of the CCP is not to prevent a plaintiff from seeking a default judgment against one codefendant because the Plaintiff has accomplished a resolution with another. That would be absurd.

This court will lift the stay of proceedings involving codefendant Budee Inc that was created by the settlement with codefendant Castaneda.

Disposition

Plaintiff’s Motion is granted.

Plaintiff to file Order.

4. 9:00 AM CASE NUMBER: L23-06350

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. ANTHONY NORWOOD

*HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT PURSUANT TO STIPULATION FILED BY PLN ON 1/30/26

FILED BY:

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Plaintiff filed a Motion to vacate dismissal and enter judgment pursuant to stipulation, on 1/30/26.

This Motion is unopposed.

However, the Motion was originally scheduled for 4/28/26, where, on that date, this court found that the Plaintiff had not given notice to the Defendant of the Motion, or of the hearing. This court continued the Motion hearing to 7/14/26, 9am, and ordered the Plaintiff to notify the Defendant.

As of this writing, there is no evidence that Plaintiff has provided notice to the defendant, either of the Motion, or of the 7/14/26, hearing.

Disposition

This Motion will be dropped.

5. 9:00 AM CASE NUMBER: L23-06824

CASE NAME: DISCOVER BANK VS. SAGAR BONDADA, JR.

*HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT PURSUANT TO STIPULATION

FILED BY:

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Plaintiff filed a Motion to Set Aside Notice of Settlement and Enter Judgment. The Motion was originally scheduled for 3/3/26, but the court continued the matter to 4/28/26. The court, however, did not notify the parties of the 4/28/26 hearing, and no appeared. The court continued the matter to 7/14/26, and indicated that it would provide notice to the parties.

But since the Defendant did not file an Answer, the court was only able to provide notice to the Plaintiff of the 7/14/26 hearing.

Defendant has not been given notice.

This is the fault of the court, and it extends its apology.

Disposition

The Motion will be continued to 9/22/26.

Plaintiff to provide notice of hearing to Defendant.

6. 9:00 AM CASE NUMBER: L24-10812

CASE NAME: CROWN ASSET MANAGEMENT, LLC VS. ANNMARIE DELGADO

***HEARING ON MOTION IN RE: FOR ENTERING JUDGMENT PURSUANT TO DEFENDANTS DEFAULT UNDER SETTLEMENT AND RELEASE AGREEMENT**

FILED BY: CROWN ASSET MANAGEMENT, LLC

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Background

Plaintiff filed a Motion to vacate dismissal and enter judgment pursuant to stipulation, along with a Declaration. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very

matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$7,370.96, plus costs, and less any credits for payments received.

The agreement was included as an exhibit in the Declaration.

The case was then dismissed.

The Defendant made payments of \$122.85.

Costs are \$375.02 as detailed in the Declaration.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$7,623.13.

Plaintiff to file order on Motion, as well as submit Judgment.

7. 9:00 AM CASE NUMBER: L25-00937

CASE NAME: BANK OF AMERICA N.A. VS. DANIEL TOMPKINS

***HEARING ON MOTION IN RE: DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR
ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY:

***TENTATIVE RULING**

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Plaintiff filed a motion for order that matters in request for admission of truth of facts be deemed admitted, on 2/26/26, along with an amended motion of 3/11/26. Both were served at the mailing address listed on Defendant's Answer.

Defendant filed a Response on 3/9/26.

Plaintiff has not filed a Reply.

This was originally scheduled to be heard on 6/16/26 but was continued by the court to 7/14/26. The Defendant was present when the court continued the matter, and the court provided mail notice to

the Plaintiff of the 7/14/26, appearance.

Background

The requested admissions at issue appear to be the same in either motion. In the interest of economy, this court will analyze the issues raised in the motion filed on 2/26/26 ("Motion").

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," to Exhibit One of the Motion, as well as proof that they served Defendant with the discovery request by mail, on 6/13/25, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer, which is the same address where Defendant was personally served with process.

Defendant filed a Response, on 3/9/26, and properly served the Plaintiff. Defendant contends that he did respond to the discovery requests of Plaintiff, mailing the first of multiple responses on 7/7/25, and attached as exhibits one through three. Defendant states he mailed the subsequent responses after Plaintiff represented in court hearings that his responses were not received or incomplete. Defendant also represents that he had initially overlooked the request for admissions because of the way it was attached to the set of interrogatories.

Though he did not include proof that he served these discovery responses, they are contained in his Response, as Exhibits 1 through 3, and the Response was properly served. Defendant does not indicate if he served a copy of the responses in Exhibit 3.

Of the Exhibits Defendant provided, only Exhibit 3 contains responses to the requests for admission. These responses generally indicate that Defendant does not have the information to answer the request, or that he denies the request.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

In the instant matter, this court finds that Defendant's responses in Exhibit 3 are substantially compliant. Moreover, this court does not find any evidence contradicting Defendant's account that he mistakenly overlooked the request for admissions, and this was the reason for any untimely response.

Disposition

Plaintiff's Motion is denied.

Defendant to file Order and serve copy of filed Order on Plaintiff.

8. 9:00 AM CASE NUMBER: L25-04811
CASE NAME: U.S. BANK NATIONAL ASSOCIATION VS. MELJORIE FELICISIMO
*HEARING ON MOTION IN RE: SUMMARY JUDGMENT
FILED BY:
TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Background

Plaintiff filed a Motion for Summary Judgment (the “MSJ”), along with a Declaration of Anthony Denmark, a Separate Statement of Undisputed Material Facts, and a Memo of Costs. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant via mail service on the address for Defendant provided in the Answer.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the

underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court first finds that the Declaration, submitted by the Plaintiff, is admissible under the Business Records exception to hearsay. Mr. Denmark declared that he was familiar with the record keeping practice of US Bank, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence.

However, there is no evidence about whether Defendant agreed to the purported terms and conditions. Though Plaintiff provides a copy of the terms, in their Exhibit A to the Declaration, and the Declaration indicates that the Defendant's use of the credit card is an act of acceptance of the terms, there is no evidence that these terms were provided to Defendant. Other than the document with Defendant's name and address at the top, there is no statement from Mr. Denmark showing that it is the custom and practice of US Bank to mail these terms to the Defendant upon receiving Defendant's application.

Plaintiff does not make a *prima facie* showing of the existence of a contract.

Disposition

The Court finds and orders as follows:

1. The MSJ is DENIED.
2. Court will prepare the Order.

9. 9:00 AM CASE NUMBER: L25-08444

CASE NAME: CAPITAL ONE N.A. VS. YEVGENIYA KOSHTA

*HEARING ON MOTION IN RE: MOTION UNDER CCP 454 TO PRECLUDE PLN ACCT EVIDENCE OR ALT

COMPEL FURTHER ACCT FILED BY DEF ON 4/3/26

FILED BY: KOSHTA, YEVGENIYA

***TENTATIVE RULING**

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Defendant filed a Motion to Preclude Plaintiff's Account Evidence, on 4/3/26.

The Motion is unopposed, but there is no evidence that Defendant provided notice of the Motion to the Plaintiff.

Disposition

This Motion will be continued to 9/22/26, 9am.

Defendant to file Order, and to provide notice of Motion and of hearing to Plaintiff.

**10. 9:00 AM CASE NUMBER: L25-10803
CASE NAME: WELLS FARGO BANK, N.A. VS. VICTORIA MIGUEL
HEARING ON SUMMARY MOTION
FILED BY: WELLS FARGO BANK, N.A.**

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Background

Plaintiff filed a Motion for Summary Judgment (the "MSJ"), along with a Declaration of Charles Brophy, a Separate Statement of Undisputed Material Facts, and a Memo of Costs. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant via mail service on the address for Defendant provided in the Answer.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no

dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court first finds that the Declaration, submitted by the Plaintiff, is admissible under the Business Records exception to hearsay. Mr. Brophy declared that he was familiar with the record keeping practice of Wells Fargo Bank, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence.

However, there is no evidence about whether Defendant agreed to the purported terms and conditions. Though Plaintiff provides a copy of the terms, in their Exhibit One to the

Declaration, and the Declaration indicates that the Defendant's use of the credit card is an act of acceptance of the terms, there is no evidence that these terms were provided to Defendant. Contending that the agreement "was made available to Defendant for review and objection," (Paragraph 11, Declaration), is insufficient. Just how was this agreement made available? Did Plaintiff provide any notice to Defendant that the terms were available? There is no statement from Mr. Brophy showing that it is the custom and practice of US Bank to mail these terms to the Defendant upon receiving Defendant's application.

Plaintiff does not make a prima facie showing of the existence of a contract.

Disposition

The Court finds and orders as follows:

2. The MSJ is DENIED.
3. Court will prepare the Order.

11. 9:00 AM CASE NUMBER: L25-11299

CASE NAME: WELLS FARGO BANK, N.A. VS. LALEH NIKBAKHT

***HEARING ON MOTION FOR DISCOVERY FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSION AS ADMITTED**

FILED BY: WELLS FARGO BANK, N.A.

***TENTATIVE RULING**

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration, on 4/6/26.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," to their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer, which is the same address where Defendant was personally served with process.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order, and serve Defendant with a copy of the filed Order.

12. 9:00 AM CASE NUMBER: L25-11390

CASE NAME: CITIBANK N.A. VS. EUGENE WOOLFORK

***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND JUDGMENT, IF ENTERED**

FILED BY: WOOLFORK, EUGENE

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Defendant filed a Motion, on 4/24/26, to set aside entry of default, under Section 473(b) of the CCP, claiming he was not personally served with process. Defendant writes that his nephew left the "papers" for him on his desk, that at a third party agency did not see his case "in the systems," and that he was experiencing a great amount of stress.

Plaintiff filed a Response, contending that the proof of service, reflecting personal service by a registered process service, which contradicts Defendant's claim. The proof of service, filed 11/3/25, reflects that the server provided the documents to a person at the same address listed by Defendant on his Motion, who acknowledged that he was, in fact, the Defendant.

Default was entered 4/20/26.

Analysis

Section 473.5 of the Code of Civil Procedure allows the court to set aside a default judgment when the defendant does not receive actual notice of the process. Section 473(b) of the CCP which provides the same authority in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect.

Though Defendant did not explicitly invoke Section 473.5 of the CCP, this court will analyze his Motion under this authority as well, since Defendant claimed he was not personally served.

However, service that is done by a registered process server raises a presumption of valid service, shifting the burden to the Defendant. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.

Moreover, courts have found that provisions governing notice of service of process are to be liberally construed if actual notice has been received by the defendant. (See *Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App. 4th 1387, 1392 (substitute service found where gate guard to a home was given authority to control access to appellants' home; the gate guard's relationship with appellants made it more likely than not that he would deliver process to appellants)).

In the instant matter, the court does not find that Defendant has overcome the presumption that he was actually served. What's more, even assuming the truth of Defendant's assertion, for the sake of argument, Defendant concedes that he did receive the process documents and did have actual notice of the case.

Moreover, this court does not find a sufficient basis to set aside the entry of default for defendant's mistake or inadvertence. The court is sympathetic to the difficulties that Defendant claims he is enduring, but these difficulties appear to be quite general, offer little detail in corroboration, and do not appear to be so unusual that they should excuse the defendant from following the rules of civil procedure.

Disposition

Defendant's Motion is denied.

Plaintiff to file Order and serve Defendant with a copy of the filed Order.

13. 9:00 AM CASE NUMBER: L25-11859
CASE NAME: BANK OF AMERICA N.A. VS. KENNETH JOHNSON
***HEARING ON MOTION IN RE: NTC AND MTC FURTHER RESPONSES TO DEMAND FOR**
PRODUCTION OF DOCUMENTS; REQ. FOR SANCTIONS

FILED BY: JOHNSON, KENNETH C

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Defendant filed a Motion to Compel further discovery responses on 4/14/26 and properly provided notice to Plaintiff.

Plaintiff filed a Response on 6/30/26.

Defendant filed a Reply, on 7/6/26.

Background

Exhibit A of Defendant's Motion reflects that he made a demand for the production of documents on 1/5/26. Exhibit B shows that Plaintiff provided a verified response to this request. The verification is dated 2/13/26. Exhibit One of Plaintiff's Response reflects that Plaintiff served this verified response on Defendant by mail on 2/20/26.

Defendant's proof of service, filed 4/14/26, reflects that Defendant mailed notice of his Motion to the Plaintiff on 4/14/26.

Analysis

Section 2031.310(c) provides that a party waives the right to compel any further responses to a discovery demand if they fail to provide notice of a motion to compel "within 45 days of service of the verified responses."

In the instant matter, as Plaintiff points out in their Response, even allowing for the additional 5 days of notice for mail service, 45 days from 2/25/26 would have been 4/11/26, which is before Defendant's service of the Motion (both the actual date of mailing the Motion and the date that factors in the additional 5 days of notice for mail service fall after 4/11/26).

Defendant has waived his right to compel further responses.

Disposition

Defendant's Motion is denied.

Plaintiff to file Order and provide copy of filed Order to Defendant.

14. 9:00 AM CASE NUMBER: L25-12028

CASE NAME: WELLS FARGO BANK, N.A. VS. ANITRA ALCANTARA

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED (MOTIONS)**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration, on 4/6/26.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," to their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer, which is the same address where Defendant was personally served with process.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order and serve Defendant with a copy of the filed Order.

15. 9:00 AM CASE NUMBER: L25-13119

CASE NAME: WELLS FARGO BANK, N.A. VS. ELIZABETH APARICIO, AN INDIVIDUAL

***HEARING ON MOTION FOR DISCOVERY FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSION AS ADMITTED**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration, on 4/3/26.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," to their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer, which is the same address where Defendant was personally served with process.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order and serve Defendant with a copy of the filed Order.

**16. 9:00 AM CASE NUMBER: L25-14274
CASE NAME: CHRISTOPHER BOSCIA VS. ROBERT SERAFIN
HEARING ON DEMURRER TO: CHRISTOPHER BOSCIA'S DEMURRER TO CROSS COMPLAINT FILED ON
04/08/2026
FILED BY:**

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Cross-Defendant ("CD") filed a Demurrer to the Cross Complaint of Cross-Complainant ("CC"), along with a Declaration. CC filed a Response as well as a Declaration. All of the pleadings appear to have been served electronically. Though CC is self-represented and does not appear to have provided consent to email service, he did file a Response, so this court finds that parties have been properly served and notified.

Background

CD filed an initial Complaint in this matter, as Plaintiff, on 12/12/25, alleging breach of contract in that CC, as Defendant, on 8/20/22, failed to pay approximately \$6,600, plus interest, based on an agreement between the two parties for legal services.

The Cross Complaint, filed on 2/25/26, alleged that CC retained CD as counsel on 12/3/21, for a DVRO matter. There was a written fee agreement for legal counsel which detailed the scope of the representation, hourly rates, and terms of payment. The duration of the representation was for approximately 8 months, ending in August, 2022. During this period, CC paid a total of \$33,253.87 for the professional legal service as well as for the services of a third-party forensic expert. CC did not prevail at the hearing for the DVRO, and a court issued an order against him.

At some point after this restraining order was issued, CC obtained a different attorney who successfully represented him in a hearing to extend the original restraining order. CC paid this attorney approximately \$3,000.

On 11/29/23, CC executed a substitution of attorney. It is unclear when this act occurred relative to the representation of CC by the subsequent attorney.

The Cross Complaint reflects that CD is claiming an outstanding balance of approximately \$8,600, for the legal work plus unpaid interest on that balance, and that CD made this claim in the form of a demand letter on 10/28/25.

Though there are five causes of action, and only one specially alleges professional malpractice (the others include: declaratory relief; breach of contract; breach of fiduciary duty; and unjust enrichment), all causes of action in the Cross Complaint entirely stem from this representation, and all contend that CD, in some manner, improperly charged CD for the legal services. To be sure, two causes of action make the additional allegations that CD breached professional standards of care by communicating, during the representation, with a third-party attorney without the consent of CC; and by, essentially, failing to achieve a different outcome at the hearing for the DVRO. However, each cause reflects an allegation that centers on billing practices, either the manner of billing or the particular items or services that CD billed.

CD claims that these causes of action all stem from the same nexus of alleged facts, a nexus that suggests professional malpractice, and thus all are time-barred by Section 430.41 of the CCP. CD also notes, in the Response, that the Cross Complaint concedes that CC received detailed billing invoices no later than August 2022. (Line 18, Page 2, Response.) However, this court does not see any such concession in the Cross Complaint.

Analysis

A demurrer is proper when the pleading reveals the court has no jurisdiction of the subject 28 of the cause of action alleged in the pleading. (*Code Civ. Proc.*, § 430.10, *subd. (a)*.) A demurrer may be brought to challenge a legally insufficient petition for writ of mandate. (*SJJC Aviation Services, LLC v. City of San Jose* (2017) 12 Cal.App.5th 1043, 1051-1052.)

When considering a demurrer, the court should accept as true “all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Zelig v. County of L.A.* (2002) 27 Cal.4th 1112, 1126, quoting *Serrano v. Priest* (1971) 5 Cal.3d 584, 591.) A demurrer for lack of jurisdiction is proper where the litigation is untimely under the applicable statute of limitations. (*Code Civ. Proc.*, § 430.10, *subd. (a)*.)

California courts have long held that a responding party may also demur to an untimely complaint on the grounds that the complaint does not state facts sufficient to constitute a cause of action. (*Code Civ. Proc.*, § 430.10, *subd. (e)*; *Brown v. Martin* (1864) 25 Cal. 82, 93.)

A demurrer lies where the untimeliness of the lawsuit clearly and affirmatively appears on the face of the complaint. (*Coalition for Clean Air v. City of Visalia* (2012) 209 Cal.App.4th 408, 420.) However, “[I]f those dates are missing, there is no ground for a general demurrer.” (*United Western Medical Centers v. Superior Court* (1996) 42 Cal.App.4th 500, 505.) It is not enough that the complaint merely shows that the action may be barred. (*Coalition for an Equitable Westlake/MacArthur Park v. City of*

Los Angeles (2020) 47 Cal.App.5th 368, 376.)

Claims against an attorney for professional negligence are governed by Code of Civil Procedure section 340.6, which provides that an “action against an attorney for a wrongful act or omission . . . arising in the performance of professional services must be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first.”

Under section 340.6, discovery occurs when the plaintiff discovers, or through reasonable diligence should have discovered, the facts constituting the wrongful act or omission, not when the plaintiff recognizes that those facts support a legal malpractice theory. (*Peregrine Funding, Inc. v. Sheppard Mullin Richter & Hampton LLP* (2005) 133 Cal.App.4th 658, 685.) It is irrelevant that the plaintiff may not have appreciated the legal significance of those facts at the time. *Id.*

Causes of action under other guises, except for fraud, are subject to the limitations of Section 340.6 if they depend on the alleged wrongful acts or omissions in the performance of legal services. (*Levin v. Graham & James* (1995) 37 Cal.App.4th 798, 805-806.)

The California Supreme Court has provided a test for the application of this limitation. Specifically, this “time bar applies to claims whose merits necessarily depend on proof that an attorney violated a professional obligation in the course of providing professional services. In this context, a ‘professional obligation’ is an obligation that an attorney has by virtue of being an attorney, such as fiduciary obligations, the obligation to perform competently, the obligation to perform the services contemplated in a legal services contract into which an attorney has entered, and the obligations embodied in the State Bar Rules of Professional Conduct.” (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1236-1237.)

When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. The burden rests on the plaintiff to prove the possibility of amendment. *Id.*

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685. Also, a court does not have to grant leave to amend when the plaintiff has not requested such leave. *Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 CA4th 1403, 1423.

In the instant matter, there does not appear to be one cause of action that *does not* depend on proof that CD violated a professional obligation while providing services to CC as his attorney. Each claim, whether it be unreasonable or excessive billing for legal services; or conducting unnecessary legal work; or by consulting a third-party attorney, necessarily hinges on proof that CD breached a professional duty of care as an attorney. Even in the attempt to construe the Cross Complaint in a

manner most favorable to CC, this court cannot conjure a cause of action independent of professional malpractice. This certainly is not a matter of conversion.

Thus, this court finds that the causes of action in the Cross Complaint are subject to a one-year period of limitation.

It is when CC comes into possession of an itemized billing statement that he *should* be aware of the facts giving rise to a claim. It is this same event that would begin the one-year period of limitation. However, it is unclear when CC learned of these billing practices, or even when he should have learned of these billing practices.

Though CC made a payment of approximately \$30,000 (excluding the separate amount for forensic work) by August of 2022, and the professional relationship between CD and CC clearly ended no later than 11/29/23, there is no indication of when CD provided to CC an itemized billing statement, one that would detail the particular items and services for which CD sought recompense. It certainly *may* have been the case that CD provided an itemized billing statement in 2022, which led to the \$30,000 payment by CC. But it is also reasonable to infer that CD did not provide any itemized billing until sending the demand letter in 2025, and that CC made the \$30,000 payment in 2022 after receiving only a basic invoice from CD, one that was in written form or even provided orally and consisted only of an amount and did not contain any itemized detail.

Yet, that moment is unclear. The date that CD provided itemization of the services he provided is missing.

Thus, though the Cross Complaint may show that the causes of action are time barred, this is not enough.

Disposition

Demurrer is overruled.

Cross Complainant to file Order and serve copy of filed Order on Cross Defendant.

**17. 9:00 AM CASE NUMBER: MSL19-03670
CASE NAME: AUTOVEST VS POWELL
HEARING IN RE: MOTION TO VACATE JUDGMENT
FILED BY:**

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is

requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Defendant filed a Motion to Set Aside the default judgment. The Motion is unopposed but there is no evidence that Defendant provided any notice of the Motion or the hearing to Plaintiff.

Disposition

Motion will be continued to 10/13/26, 9am.

Defendant to provide notice of Motion and of the hearing to Plaintiff.

18. 9:00 AM CASE NUMBER: N26-1130

CASE NAME: MHC FINANCING LIMITED PARTNERSHIP V. RENGHINI

HEARING IN RE: VERIFIED PETITION FOR INJUNCTIVE RELIEF PURSUANT TO CIV. CODE 798.88

FILED BY: MHC FINANCING LIMITED PARTNERSHIP

***TENTATIVE RULING**

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Petitioner has filed a Petition for Injunctive Relief, under section 798.88 of the Civil Code. The Petition is unopposed but there is no evidence that Petitioner provided notice to Respondent of the Petition or of the hearing.

Disposition

Petition will be continued to 10/13/26, 9am.

Petitioner to serve Respondent with a copy of the filed Petition, as well as with notice of the next hearing.